

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF _____

CASE NO. _____

APPLICATION TO SETTLE A MINOR'S CLAIM

[R.C. 2111.05, R.C. 2111.182, Civ.R. 73.17 AND 73.18]

[Check applicable boxes, complete applicable blanks, strike inapplicable language, and attach supporting documentation.]

The applicant states that:

_____, is an unemancipated minor, born _____, _____, residing at _____ in this county who on or about _____, _____, suffered personal injury (and damage to this minor's property) by wrongful act, neglect, or default that entitles this minor to maintain an action to recover damages. A copy of the birth certificate is attached.

Attached is a narrative statement in support of the proffered settlement setting forth a description of the occurrence, the injury or damage, the treatment progress and current prognosis by the treating physicians, and other proposed or actual settlements resulting from the same occurrence being paid to persons other than this minor. Counsel will advise at the hearing as to liability and collectability.

- ☐ There is no legal guardian of the estate, and the Court may authorize the settlement without the appointment of a guardian.
- ☐ _____ is the legal guardian of the estate. Case No. _____
- ☐ _____ is (are) the parent ☐ and natural guardian ☐.
- ☐ _____ is the person by whom the minor is maintained.
- ☐ There is a (full) (partial) settlement offer of \$ _____ without suit being filed.
- ☐ There is a (full) (partial) settlement offer of \$ _____ after suit was filed; the style of the case, court, and case number being _____.
- ☐ The proffered settlement should be approved.
- ☐ Unreimbursed medical and other expenses of \$ _____ have been incurred. Attached is a list of such expenses and proposed payees.
- ☐ A reasonable attorney fee for the attorney's services is \$ _____ and reimbursement to the attorney for suit expenses is \$ _____. A copy of the attorney's fee contract that has (has not) received prior approval of this Court, subject to modification, and an itemization of suit expenses are attached.
- ☐ The parent ☐ , _____, claim \$ _____ for damages on account of loss of service of this minor and that claim is included in this settlement offer.
- ☐ This is a structured settlement. All necessary documents, including a statement of the present value of the settlement, are filed herewith.

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The applicant requests that:

☐ The Court authorizes the applicant to execute a release which shall be effective upon payment of the settlement.

☐ The Court order payment of the above expenses and order that the net amount of \$ _____ for the benefit of the minor be:

☐ Deposited in the name of the minor with _____, a financial institution, and not to be released until the minor attains the age of majority or upon further order of this Court.

☐ Delivered to the legal guardian.

☐ Delivered to _____, parent and natural guardian.

☐ Delivered to _____, the person by whom the minor is maintained.

☐ Structured as set forth in the attached documents.

☐ Deposited into a trust, proposed trust attached, for the benefit of the beneficiary until the beneficiary reaches 25 years of age (R.C. 2111.82).

☐ Supplemental forms required by local rule of Court are attached.

Attorney for Applicant

Applicant

Typed or Printed Name

Typed or Printed Name

Address

Address

Phone Number (include area code)

Phone Number (include area code)

Email Address

Email Address

Attorney Registration No. _____

ENTRY SETTING HEARING AND ORDERING NOTICE

The Court sets _____, at _____ o'clock __.m. as the date and time for hearing the above application and orders notice to be given by the applicant, as provided in the Rules of Civil Procedure, to the parents who have not waived notice and (further orders that the minor and parent attend the hearing.)

Probate Judge